

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE R. BROOKE JACKSON

Courtroom Deputy: Laura Galera
Court Reporter: Kara Spitler

Date: December 21, 2012

Civil Action No. 11-cv-00303-RBJ-MEH

Parties:

ST. PAUL SOBER LIVING, LLC,
CHRIS EDRINGTON,
DONALD EDRINGTON,
ADAM TIPTON,
ALEX COLINS,

Plaintiffs,

v.

GARFIELD COUNTY, BOARD OF
COUNTY COMMISSIONERS,

Defendant.

Counsel:

Steven Polin
Fabian Hoffner

Cassandra Coleman

COURTROOM MINUTES

Trial to Jury - Day Four.

9:01 a.m. Court in session.

Jury present.

Rebuttal closing argument by Mr. Polin.

9:41 a.m. Jury excused to begin deliberation.

Parties address the Court regarding exhibits.

9:44 a.m. Court in recess.

10:48 a.m. Court in session.

Jury not present.

Ms. Coleman is present in the courtroom.

Mr. Polin appears by phone.

Court addresses the parties regarding the jurors' questions.

Mr. Polin and Ms. Coleman address the Court regarding the proposed answers.

Parties agree to the answer.

Bailiff will report the answers to the jury.

11:00 a.m. Court in recess.

11:58 a.m. Court in session.

Jury present.

Foreperson confirms that the jury has reached a unanimous verdict and delivers same to the Court via the bailiff.

Court gives the jury closing instructions.

Court reads the verdict.¹

Jury excused with the thanks of the court.

Mr. Polin requests the Court enter a permanent injunction against the County to prevent them from enforcing their zoning codes against St. Paul Sober Living.

ORDERED: Subject to the submission of a written order (which should be submitted to and approved by defense counsel as to form), the Board of County Commissioners must be and is now enjoined from enforcing its zoning code in a way that would require the sober living house to be removed.

Court addresses the parties.

¹ Clerk's Note: Exhibits and depositions have been returned to counsel. Pursuant to General Order 2007-03 the original Verdict Form has been filed conventionally by delivery to the clerk's office. A representation of the Verdict Form is attached to the court minutes.

12:09 p.m. Court in recess.

Trial concluded.

Total Time: 01:06